

Shyam Sunder v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 November 2024 · 2024:AHC:185680-DB · Writ - C No. 39363 of 2024 · **Bill objection remitted to Executive Engineer under clause 6.5; merits not decided**

HEADNOTE

Writ seeking only a direction to decide an objection to an electricity bill disposed of. The Executive Engineer is to consider and dispose of the objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005, within the time frame fixed in the Code. The bill was not examined on merits.

FACTUAL SUMMARY

Shyam Sunder filed a writ asking the Allahabad High Court to direct the Executive Engineer, Electricity Distribution Division, Purvanchal Vidyut Vitran Nigam Limited, Manjhanpur, Kaushambi, to decide his objection dated 8 November 2024 against an electricity bill he said was erroneous, within a time the Court might fix. The State and the distribution licensee were respondents. Counsel for the licensee submitted that the objection could be considered under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

billing objection before Executive Engineer

HOLDING

A writ that asks only that an objection already filed against an electricity bill be decided is disposed of by directing the Executive Engineer to consider and dispose of that objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005, within the time frame fixed in the Code. The correctness of the bill is not examined. ¶ 3-5

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 The objection dated 8 November 2024 against the electricity bill was left to the Executive Engineer, EDD, Manjhanpur, to consider and dispose of under clause 6.5 within the time frame fixed in the Code. ¶ 3-4

article-226-alternate-remedy-up-supply-code-6.5 On the licensee's submission that clause 6.5 was the suitable route, the writ was disposed of without any examination of the bill on merits. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL OBJECTED TO ON 8 NOVEMBER 2024 IS ERRONEOUS

The Court recorded that it had not considered the petitioner's claim on merit. ¶ 5